

Court No. - 29

Case :- WRIT - C No. - 21946 of 2019

Petitioner :- Ramesh Chandra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rateesh Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel appearing for respondent nos. 3 and 4.

The petitioner is aggrieved by the notice dated 20.4.2018 issued by the Executive Engineer Dakshinanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khan-3, Odhpura, Hathras for the recovery of Rs. 60,728/- as electricity charges.

The submission of learned counsel for the petitioner is that his electricity connection was installed on 05.05.2015 but the demand of electricity charges has been raised from the year 2006 when he had made application for the sanction of the electric connection.

Sri Baleshwar Chaturvedi, learned counsel has pointed out that there are two independent electricity connection in the name of the petitioner. One is for the purposes of running tubewell and the other for domestic purposes. The impugned notice of demand is in respect of electricity used for tubewell. The domestic connection was installed on 05.05.2015 and is separate and independent from it.

In view of the aforesaid facts and circumstances, the writ petition appears to be misconceived and at the same time, in our opinion petitioner had not filed it with clean hands rather by creating confusion and as such we do not deem it proper to exercise our discretionary jurisdiction in the matter.

If the petitioner is aggrieved by the demand of electricity charges, he may file objections in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer who will consider the matter and decide it in accordance with law.

In view of the aforesaid facts and circumstances specially the alternative remedy available to the petitioner, the writ petition stands dismissed.

Order Date :- 11.7.2019

Mohit Kushwaha